

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Merchandise Marks Act, 1887	50 & 51 Vict. c. 28.
Merchandise Marks Act, 1891	54 & 55 Vict. c. 15.
Motor Car Act, 1903	3 Edw. 7. c. 36.
Parks Regulation (Amendment) Act, 1926 ...	16 & 17 Geo. 5. c. 36.
Summary Jurisdiction (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 48.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.
Food and Drugs (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 30.
Road Transport Lighting Act, 1957	5 & 6 Eliz. 2. c. 51.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Highways Act, 1959	7 & 8 Eliz. 2. c. 25.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.
Road Traffic and Roads Improvement Act, 1960	8 & 9 Eliz. 2. c. 63.
Road Traffic (Driving of Motor Cycles) Act, 1960	8 & 9 Eliz. 2. c. 69.
Vehicles (Excise) Act, 1962	10 & 11 Eliz. 2. c. 13.

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11 ELIZ. 2

## CHAPTER 1

An Act to make provision as to the operation of the law  
upon Tanganyika becoming a Republic within the  
Commonwealth. [6th December, 1962]

**W**HEREAS on the 9th December 1962 Tanganyika will become a Republic while remaining a member of the Commonwealth:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation  
of existing  
law.

1.—(1) On and after the 9th December 1962 (in this Act referred to as the appointed day) all existing law, that is to say all law which, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, is in force on that day or has been passed or made before that day and comes into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, and subject to the following provisions of this section, have the same operation in relation to Tanganyika, and persons and things belonging to or connected with Tanganyika, as it would have apart from this subsection if Tanganyika had not become a Republic.

(2) Her Majesty may by Order in Council make such adaptations in any Act of the Parliament of the United Kingdom passed before the appointed day, or in any instrument having effect under any such Act, as appear to Her necessary or expedient in consequence of Tanganyika becoming a Republic; and any such Order may, though made after the appointed day, be made so as to have effect from that day.

(3) Any Order in Council under subsection (2) of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament and may be varied or revoked by a subsequent Order in Council.

(4) This section extends to the Channel Islands and the Isle of Man as well as to the United Kingdom and, so far as it relates to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby it applies in relation to Tanganyika, extends also to any other country or territory to which that enactment or Order extends.

2.—(1) Her Majesty may by Order in Council confer on the Judicial Committee of the Privy Council such jurisdiction in respect of appeals to Her Majesty in Council—

Pending  
appeals to  
Her Majesty  
in Council.

(a) from a Court or Judge in Tanganyika; or

(b) from the Court of Appeal for Eastern Africa on appeal from such a Court or Judge,

being appeals which are pending immediately before the appointed day, and in which the records have been registered in the Office of the Privy Council before that day, as appears to Her to be appropriate for giving effect to any arrangements between Her Majesty's Government in the United Kingdom and the Government of Tanganyika for any such appeals to be continued before and disposed of by that Committee.

(2) An Order in Council under this section may, if the arrangements so require, direct that any appeal continued before the Judicial Committee of the Privy Council under this section shall abate on a date specified in the Order unless it has been heard by the Committee before that date; and an Order containing such a direction may contain provisions to facilitate the hearing of any such appeal before that date, including provisions as to the sittings of the said Committee and provisions for expediting the steps to be taken by the parties preliminary to the hearing of an appeal.

(3) An Order in Council under this section may determine the practice and procedure to be followed on any appeal continued before the said Committee under this section, and in particular may provide for the form of any report or recommendation to

be made by the Judicial Committee of the Privy Council in the exercise of the jurisdiction conferred on that Committee under this section, and for its transmission to such authority in Tanganyika as may be specified in the Order, and may contain such other incidental and supplemental provisions as appear to Her Majesty to be desirable.

(4) An Order in Council under this section may, though made after the appointed day, be made so as to have effect from that day, and may be varied or revoked by a subsequent Order in Council.

3 & 4 Will. 4,  
c. 41. (5) Except so far as otherwise provided by an Order in Council under this section, and subject to such modifications as may be so provided, the Judicial Committee Act 1833 shall apply in relation to appeals continued before the Judicial Committee of the Privy Council under this section as it applied in relation to those appeals before the appointed day.

(6) Subject to the provisions of any Order in Council under this section, nothing in this Act shall be construed as continuing in force any right of appeal to Her Majesty in Council from Tanganyika.

Short title.

3. This Act may be cited as the Tanganyika Republic Act 1962.

## CHAPTER 2

### *Pensions (Increase) Act 1962*

#### ARRANGEMENT OF SECTIONS

##### Section

1. Increase of certain United Kingdom pensions.
2. Additional increase for pensioners over seventy years of age.
3. Supplements in respect of certain colonial and other pensions.
4. Amendment of Pensions (India, Pakistan and Burma) Act 1955.
5. Amendment of Pensions (Increase) Act 1944.
6. Local authority gratuities.
7. Application of Pensions (Increase) Acts to Raw Cotton Commission pensions.
8. Supplementary provisions.
9. Expenses.
10. Interpretation.
11. Short title, citation and extent.

##### SCHEDULES:

Schedule 1—Amendments and modifications of Pensions (Increase) Act 1959 as applied.

Schedule 2—Persons in receipt of more than one pension.

Schedule 3—Overseas pensions.

Schedule 4—Pension Funds added to Pensions (India, Pakistan and Burma) Act 1955 Schedule 2 Part I paragraph 1.